

25CMCV01844 25CMCV01844

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-30

Motion: MOTION TO QUASH SERVICE OF SUMMONS DATE: June 30, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV01844 Hearing Date: June 30, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

Dr.

Firpo Wycoff Carr, PhD,

Plaintiff,

vs.

Briana Melendez,

Defendants.

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CASE

NO: 25CMCV01844

[TENTATIVE] ORDER RE: MOTION TO QUASH SERVICE
OF SUMMONS

DATE: June 30, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Parties: Defendant

Briana Melendez

Responding Party: Plaintiff

Dr. Firpo Wycoff Carr

Notice: Ok

Tentative Ruling: Defendant's

Motion to Quash Service of Summons is DENIED.

I.

BACKGROUND

This is an action arising from a
motor vehicle accident. Plaintiff Dr. Firpo Wycoff Carr alleges that, on
November 10, 2023, he was the last car rear-ended in a three-car chain reaction
crash on the transition ramp from the I-170 freeway to the I-105 southbound. Plaintiff alleges Defendant Briana Melendez
caused

the accident by driving at an unsafe speed.

On

October 30, 2025, Carr filed his complaint against Melendez alleging causes of action for: (1) Intentional Infliction of Emotional Distress (“IIED”); and (2) Negligence.

On

March 25, 2026, Defendant filed a Demurrer to Plaintiff's Complaint and a Motion to Strike Portions of Complaint.

On

March 26, 2026, Defendant filed the instant Motion to Quash Service of Summons.

On

May 6, 2026, Plaintiff filed an Opposition to the Motion to Quash Service of Summons.

On

May 8, 2026, Defendant filed a Reply in Support of the Motion to Quash Service of Summons.

On

May 14, 2026, Plaintiff filed a Response to Defendant's Reply.[1]

On

May 19, 2026, the Court Sustained Defendant's Demurrer with 30 days leave to amend and Denied the Motion to Strike. (See Minute Order, 5/19/26.)

II.

ANALYSIS

A.

Legal

Standard

A defendant may move to quash service of summons on the ground the Court lacks personal jurisdiction.¿ (Code Civ. Proc. § 418.10(a)(1).) And a court lacks jurisdiction over a party if there has not been proper service of process. (See Ruttenberg v. Ruttenberg (1997))

53 Cal.App.4th 801, 808.)

“Although the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.” (In re Automobile Antitrust Cases I and II (2005) 135 Cal.App.4th 100, 110; see also Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868 (When a defendant moves to quash service of summons, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service”).)

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1440, 1444 (“Dill”).)

“[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id., at p. 1441-42; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 795 (a filed proof of service creates rebuttable presumption that service was proper if it complies with statutory requirements.)

B.

Discussion

Defendant

moves to quash service of summons pursuant to Code of Civil Procedure §§ 418.10 and 415.50 on the ground that the Court lacks personal jurisdiction due to invalid and ineffective service of process. Defendant argues that Plaintiff failed to show reasonable diligence before attempting service by publication and Plaintiff failed to attempt service by mail pursuant to Code of Civil Procedure 415.30. Defendant further argues that Plaintiff’s declaration for the requirements of Section 415.50[2] failed to strictly comply with the statute and the court lacked authority to authorize service by publication, and thus service effected pursuant to a defective publication is void.

Plaintiff argues in opposition that

Defendant evaded service as she was not available at the address on her license and Plaintiff could not ascertain her true address.

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) to quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. §418.10(a)(1).) However, while “a defendant or cross-defendant may make a motion under this section and simultaneously answer, demur, or move to strike the complaint or cross-complaint . . . [f]ailure to make a motion under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution.” (Code Civ. Proc. §481.10(e)(3)(emphasis added); see also *City of Riverside v. Horspool* (2014) 223 Cal.App.4th 670, 680).)

Defendant filed a demurrer on March 25, 2026 and subsequently filed the instant Motion to Quash Service of Summons on March 26, 2026. Defendant failed to simultaneously make a motion pursuant to Section 418.10 at the time of filing her demurrer and motion to strike as is required by the Code of Civil Procedure. The Court accordingly finds that Defendant has waived the issues of lack of personal jurisdiction, inadequacy of process, and inadequacy of service of process. Further, Defendant has already made a general appearance and conceded to the jurisdiction of this Court via her counsel's appearance at the May 19, 2026 hearing on Defendant's Demurrer. “A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.” (Code Civ. Proc. § 1014; see also *Roy v. Superior Court* (2005) 127 Cal. App. 4th 337, 341 (“A defendant who has not yet answered has been held to have made a general appearance—that is, to have conceded the jurisdiction of the court—if he invokes the authority of the court on his behalf, or affirmatively seeks relief”).)

In accordance with the above, the Court finds that Defendant has waived the issues of lack of personal jurisdiction, inadequacy of process, and inadequacy of service of process and has already made a general appearance in this action, thereby submitting to the Court's jurisdiction.

III.

CONCLUSION

Defendant's Motion to Quash Service of Summons is DENIED.

[1] Plaintiff's May 14, 2026 filing is

not authorized by the Code of Civil Procedure; absent a Court order specifically authorizing such a filing, Plaintiff may not file a "Response" to Defendant's Reply. (See Code Civ. Proc. § 1005(b).)

Because Plaintiff's May 14 filing is unauthorized and, to the extent any authority existed to file it as an opposition to Defendant's motion, untimely. Accordingly, the Court declines to review it. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

[2] Unless otherwise specified, all Section references are to the Code of Civil Procedure.